

LOKPAL AND LOKAYUKTAS

OMBUDSMAN EVOLUTION AND STATUTORY → COMPOSITION AND ELIGIBILITY → SELECTION, TENURE AND REMOVAL → JURISDICTION OVER PERSONS AND → PRIME MINISTER AND PARLIAMENTARY → COMPLAINT AND PRELIMINARY INQUIRY

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g4 • explicit approval of this exact generation is required • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 OMBUDSMAN EVOLUTION AND STATUTORY IDENTITY

OMBUDSMAN EVOLUTION AND STATUTORY IDENTITY

ROOT QUESTION

HOW CAN HIGH PUBLIC OFFICE BE INVESTIGATED WITHOUT MERGING

1809 SWEDEN

OMBUDSMAN MODEL.

1966 FIRST ARC

UNION LOKPAL + STATE LOKAYUKTAS.

1968 ONWARD

ROOT QUESTION

How can high public office be investigated without merging complaint, police and court?

1809 Sweden → ombudsman model.

1966 First ARC → Union Lokpal + State Lokayuktas.

1968 onward → repeated Bills.

CONSTITUTIONAL BASIS / ARTICLE

- ROOT QUESTION
- How can high public office be investigated without merging complaint, police and court?
- 1809 Sweden → ombudsman model.

POWER / PROCEDURE

- 1966 First ARC → Union Lokpal + State Lokayuktas.
- 1968 onward → repeated Bills.
- 2013 Act → assent 1 January 2014 → commencement 16 January 2014.

CHECK / LIMIT

- LEGAL IDENTITY statutory
- Union institution
- no general suo-motu route.

FEDERAL / RIGHTS IMPACT

- CORE DISTINCTION
- Lokpal directs a legal process; the Special Court decides criminal guilt.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Lokpal directs a legal process; the Special Court decides criminal guilt.

01

STAGE 01 COMPOSITION AND ELIGIBILITY

COMPOSITION AND ELIGIBILITY

CHAIRPERSON + NOT MORE THAN EIGHT MEMBERS.

50% JUDICIAL

AT LEAST 50% FROM NAMED SOCIAL CATEGORIES.

ELIGIBILITY JUDICIAL AND EMINENT-PERSON ROUTES HAVE DISTINCT STATUTORY CONDITIONS.

TRAP REPRESENTATION APPLIES TO MEMBERS; IT IS NOT AN

CONSTITUTIONAL BASIS / ARTICLE

Chairperson + not more than eight Members.
50% judicial

POWER / PROCEDURE

at least 50% from named social categories.
ELIGIBILITY judicial and eminent-person routes have distinct statutory conditions.

CHECK / LIMIT

TRAP representation applies to Members; it is not an extra seat count.
Chairperson + not more than eight Members.

FEDERAL / RIGHTS IMPACT

50% judicial
at least 50% from named social categories.

CONSTITUTIONAL BASIS / ARTICLE

- Chairperson + not more than eight Members.
- 50% judicial

POWER / PROCEDURE

- at least 50% from named social categories.
- ELIGIBILITY judicial and eminent-person routes have distinct statutory conditions.

CHECK / LIMIT

- TRAP representation applies to Members; it is not an extra seat count.
- Chairperson + not more than eight Members.

FEDERAL / RIGHTS IMPACT

- 50% judicial
- at least 50% from named social categories.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP representation applies to Members; it is not an extra seat count.

02

STAGE 02 SELECTION, TENURE AND REMOVAL

SELECTION, TENURE AND REMOVAL

EMINENT JURIST.

SEARCH COMMITTEE ASSISTS; PRESIDENT APPOINTS ON RECOMMENDATION.

TENURE FIVE YEARS OR AGE SEVENTY

NO REAPPOINTMENT.

REMOVAL MISBEHAVIOUR

SUPREME COURT INQUIRY.

SPECIFIED DIRECT-REMOVAL GROUNDS REMAIN SEPARATE.

eminent jurist.

Search Committee assists; President appoints on recommendation.

TENURE five years or age seventy

no reappointment.

REMOVAL misbehaviour: President → Supreme Court inquiry.

CONSTITUTIONAL BASIS / ARTICLE

- eminent jurist.
- Search Committee assists; President appoints on recommendation.

POWER / PROCEDURE

- TENURE five years or age seventy
- no reappointment.

CHECK / LIMIT

- REMOVAL misbehaviour: President → Supreme Court inquiry.
- Specified direct-removal grounds remain separate.

FEDERAL / RIGHTS IMPACT

- Common Cause v. Union of India (2017): vacancy did not make the Act unworkable.
- eminent jurist.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Common Cause v. Union of India (2017): vacancy did not make the Act unworkable.

03

STAGE 03 JURISDICTION OVER PERSONS AND ENTITIES

JURISDICTION OVER PERSONS AND ENTITIES

GROUPS A-D

FORMER COVERED FUNCTIONARIES.

ENTITIES GOVERNMENT-LINKED BODIES AND SPECIFIED DONATION/FOREIGN-CONTRIBUTION RECIPIENTS, SUBJECT TO

TRAP COVERAGE IS CONDITIONAL; LOKPAL HAS NO GENERAL PRIVATE-SECTOR

CONSTITUTIONAL BASIS / ARTICLE

- Groups A-D

POWER / PROCEDURE

- ENTITIES government-linked bodies and specified

CHECK / LIMIT

- Groups A-D

FEDERAL / RIGHTS IMPACT

- ENTITIES government-linked bodies and specified

03

STAGE 03

JURISDICTION OVER PERSONS AND ENTITIES

JURISDICTION OVER PERSONS AND ENTITIESGROUPS A-DFORMER COVERED FUNCTIONARIES.ENTITIES GOVERNMENT-LINKED BODIES AND SPECIFIED DONATION/FOREIGN-CONTRIBUTION RECIPIENTS, SUBJECT TOTRAP COVERAGE IS CONDITIONAL; LOKPAL HAS NO GENERAL PRIVATE-SECTOR

CONSTITUTIONAL BASIS / ARTICLE

- Groups A-D
- former covered functionaries.

POWER / PROCEDURE

- ENTITIES government-linked bodies and specified donation/foreign-contribution recipients, subject to statutory thresholds.
- TRAP coverage is conditional; Lokpal has no general private-sector jurisdiction.

CHECK / LIMIT

- Groups A-D
- former covered functionaries.

FEDERAL / RIGHTS IMPACT

- ENTITIES government-linked bodies and specified donation/foreign-contribution recipients, subject to statutory thresholds.
- TRAP coverage is conditional; Lokpal has no general private-sector jurisdiction.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP coverage is conditional; Lokpal has no general private-sector jurisdiction.

04

STAGE 04

PRIME MINISTER AND PARLIAMENTARY PRIVILEGE

PRIME MINISTER AND PARLIAMENTARY PRIVILEGEPM FILTER EXCLUDED DOMAINSINTERNATIONAL RELATIONSPUBLIC ORDERATOMIC ENERGYFULL BENCH + TWO-THIRDS APPROVALIN CAMERARECORD CONTROLS.

CONSTITUTIONAL BASIS / ARTICLE

- PM FILTER excluded domains: international relations
- public order

POWER / PROCEDURE

- atomic energy
- Full bench + two-thirds approval

CHECK / LIMIT

- in camera
- record controls.

FEDERAL / RIGHTS IMPACT

- MP RULE section 14(2) preserves genuine speech/vote functions.
- Sita Soren (2024): bribery is not immunised merely because linked to a vote.

MECHANISM / VERDICT — Sita Soren (2024): bribery is not immunised merely because linked to a vote.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MP RULE section 14(2) preserves genuine speech/vote functions.

05

STAGE 05

COMPLAINT AND PRELIMINARY INQUIRY

COMPLAINT AND PRELIMINARY INQUIRYPRESCRIBED COMPLAINT IDENTITY + AFFIDAVIT + PARTICULARS + SUPPORTINGLOKPAL CHOICE PRELIMINARY INQUIRYLAWFUL CLOSURE.INQUIRY PRIMA FACIE SCREENPUBLIC-SERVANT HEARINGREASONED REPORT.

INQUIRY IS NOT INVESTIGATION AND ALLEGATION IS NOT GUILT.

PRESCRIBED COMPLAINT identity + affidavit + particulars + supporting material → scrutiny.

LOKPAL CHOICE preliminary inquiry

lawful closure.

INQUIRY prima facie screen → public-servant hearing → reasoned report.

Inquiry is not investigation and allegation is not guilt.

CONSTITUTIONAL BASIS / ARTICLE

- PRESCRIBED COMPLAINT identity + affidavit + particulars + supporting material → scrutiny.
- LOKPAL CHOICE preliminary inquiry

POWER / PROCEDURE

- lawful closure.
- INQUIRY prima facie screen → public-servant hearing → reasoned report.

CHECK / LIMIT

- Inquiry is not investigation and allegation is not guilt.
- PRESCRIBED COMPLAINT identity + affidavit + particulars + supporting material → scrutiny.

FEDERAL / RIGHTS IMPACT

- LOKPAL CHOICE preliminary inquiry
- lawful closure.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Inquiry is not investigation and allegation is not guilt.

06

STAGE 06

INVESTIGATION, PROSECUTION AND SPECIAL COURT

INVESTIGATION, PROSECUTION AND SPECIAL COURTCBI/OTHER AGENCY GATHERS EVIDENCE WITHIN STATUTORY TIMELINES.LOKPAL BENCH CLOSUREDEPARTMENTAL ACTIONSANCTION/PROSECUTION ROUTE.PROSECUTION WING FILES AND CONDUCTS PROSECUTION WHEN DIRECTED.

SPECIAL COURT ADJUDICATES GUILT; TARGET ONE YEAR WITH RECORDED

CBI/other agency gathers evidence within statutory timelines.

LOKPAL BENCH closure

departmental action

sanction/prosecution route.

CONSTITUTIONAL BASIS / ARTICLE

- CBI/other agency gathers evidence within statutory timelines.
- LOKPAL BENCH closure

POWER / PROCEDURE

- departmental action
- sanction/prosecution route.

CHECK / LIMIT

- PROSECUTION WING files and conducts prosecution when directed.
- SPECIAL COURT adjudicates guilt; target one year with recorded extensions, total two years.

FEDERAL / RIGHTS IMPACT

- CBI/other agency gathers evidence within statutory timelines.
- LOKPAL BENCH closure

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: SPECIAL COURT adjudicates guilt; target one year with recorded extensions, total two years.

07

CONSTITUTIONAL BASIS / ARTICLE

- CBI/other agency gathers evidence within statutory timelines.
- LOKPAL BENCH closure

POWER / PROCEDURE

- departmental action
- sanction/prosecution route.

CHECK / LIMIT

- PROSECUTION WING files and conducts prosecution when directed.
- SPECIAL COURT adjudicates guilt; target one year with recorded extensions, total two years.

FEDERAL / RIGHTS IMPACT

- CBI/other agency gathers evidence within statutory timelines.
- LOKPAL BENCH closure

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: SPECIAL COURT adjudicates guilt; target one year with recorded extensions, total two years.

08

STAGE 07

INQUIRY WING, CVC AND CBI INTERFACES

INQUIRY WING, CVC AND CBI INTERFACES

INQUIRY WING PRELIMINARY INQUIRY AND PRIMA FACIE ASSESSMENT.

PROSECUTION WING FILES AND CONDUCTS PROSECUTION WHEN LOKPAL DIRECTS.

CVC ROUTE SPECIFIED GROUPS A-D PRELIMINARY-INQUIRY CATEGORIES UNDER THE

DSPE ROUTE CRIMINAL INVESTIGATION; LOKPAL SUPERINTENDENCE IS CONFINED TO

INVESTIGATING-OFFICER TRANSFER IN A REFERRED MATTER NEEDS LOKPAL APPROVAL.

GRIEVANCE DISTINCT ENTRY TESTS AND OUTPUTS; NO AUTOMATIC JURISDICTIONAL

LIMIT SUPERINTENDENCE

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
INQUIRY WING preliminary inquiry and prima facie assessment.	CVC ROUTE specified Groups A-D preliminary-inquiry categories under the statutory distribution.	Investigating-officer transfer in a referred matter needs Lokpal approval.	LIMIT superintendence != power to dictate a predetermined investigative result.
PROSECUTION WING files and conducts prosecution when Lokpal directs.	CBI / DSPE ROUTE criminal investigation; Lokpal superintendence is confined to Lokpal-referred matters.	VIGILANCE / WHISTLEBLOWER / GRIEVANCE distinct entry tests and outputs; no automatic jurisdictional substitution.	INQUIRY WING preliminary inquiry and prima facie assessment.

CONSTITUTIONAL BASIS / ARTICLE

- INQUIRY WING preliminary inquiry and prima facie assessment.
- PROSECUTION WING files and conducts prosecution when Lokpal directs.

POWER / PROCEDURE

- CVC ROUTE specified Groups A-D preliminary-inquiry categories under the statutory distribution.
- CBI / DSPE ROUTE criminal investigation; Lokpal superintendence is confined to Lokpal-referred matters.

CHECK / LIMIT

- Investigating-officer transfer in a referred matter needs Lokpal approval.
- VIGILANCE / WHISTLEBLOWER / GRIEVANCE distinct entry tests and outputs; no automatic jurisdictional substitution.

FEDERAL / RIGHTS IMPACT

- LIMIT superintendence != power to dictate a predetermined investigative result.
- INQUIRY WING preliminary inquiry and prima facie assessment.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT superintendence != power to dictate a predetermined investigative result.

09

STAGE 08

POWERS, ASSETS AND LIMITATION

POWERS, ASSETS AND LIMITATION

PROCESS POWERS SEARCH/SEIZURE

CIVIL-COURT POWERS

PROVISIONAL ATTACHMENT

PROSECUTION SANCTION.

ATTACHMENT RECORDED REASONS + SUSPECTED CORRUPTION PROCEEDS + MAXIMUM

MATERIAL SENT TO SPECIAL COURT

CONFIRMATION, REFUSAL OR LATER RESTORATION.

CONSTITUTIONAL BASIS / ARTICLE - PROCESS POWERS search/seizure - civil-court powers - provisional attachment	POWER / PROCEDURE - prosecution sanction. - ATTACHMENT recorded reasons + suspected corruption proceeds + maximum ninety-day provisional order - material sent to Special Court → confirmation, refusal or later restoration.	CHECK / LIMIT - SECTION 44 2016 substitution → assets/liabilities in prescribed form and manner. - Checked official material did not yield a later fresh replacement form-and-manner rule.	FEDERAL / RIGHTS IMPACT - LIMITATION complaint barred after seven years from the alleged offence. - FALSE COMPLAINT statutory safeguard requires legal proof; it must not deter bona fide disclosures. - Lok Prahari v. Union of India (2018) electoral disclosure case; it did not restore the pre-2016 Lokpal return format.
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MECHANISM / VERDICT — LIMITATION complaint barred after seven years from the alleged offence.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Checked official material did not yield a later fresh replacement form-and-manner rule.

STAGE 09

LOKAYUKTAS AND FEDERAL DIVERSITY

LOKAYUKTAS AND FEDERAL DIVERSITY

SECTION 63 EACH STATE SHALL ESTABLISH A LOKAYUKTA BY

VARIATION AXES SINGLE/MEMBER BODY

SELECTION PANEL

SUO-MOTU POWER MINISTER COVERAGE

INVESTIGATION SUPPORT

RECOMMENDATION/ENFORCEMENT ROUTE.

DO NOT UNIVERSALISE ONE STATE'S GOVERNOR PANEL, AGE, TERM

CONSTITUTIONAL BASIS / ARTICLE SECTION 63 each State shall establish a Lokayukta by State law.	POWER / PROCEDURE suo-motu power minister coverage	CHECK / LIMIT DO NOT UNIVERSALISE one State's Governor panel, age, term, Upalokayukta or report consequence.	FEDERAL / RIGHTS IMPACT FEDERAL RISK uneven minimum protection, vacancies and dependence on State agencies.
CONSTITUTIONAL BASIS / ARTICLE VARIATION AXES single/member body	POWER / PROCEDURE investigation support	CHECK / LIMIT FEDERAL GAIN	FEDERAL / RIGHTS IMPACT REFORM model baseline + State autonomy + transparent appointments + public follow-up.
CONSTITUTIONAL BASIS / ARTICLE selection panel	POWER / PROCEDURE recommendation/enforcement route.	CHECK / LIMIT State adaptation and experimentation.	FEDERAL / RIGHTS IMPACT

CONSTITUTIONAL BASIS / ARTICLE

- SECTION 63 each State shall establish a Lokayukta by State law.
- VARIATION AXES single/member body
- selection panel

POWER / PROCEDURE

- suo-motu power minister coverage
- investigation support
- recommendation/enforcement route.

CHECK / LIMIT

- DO NOT UNIVERSALISE one State's Governor panel, age, term, Upalokayukta or report consequence.
- FEDERAL GAIN
- State adaptation and experimentation.

FEDERAL / RIGHTS IMPACT

- FEDERAL RISK uneven minimum protection, vacancies and dependence on State agencies.
- REFORM model baseline + State autonomy + transparent appointments + public follow-up.

LOKPAL AND LOKAYUKTAS • TILE 3/4 • same master rows 5540-8774 of 11544 • continues below

VARIATION AXES single/member body	investigation support	FEDERAL GAIN	REFORM model baseline + State autonomy + transparent appointments + public follow-up.
selection panel	recommendation/enforcement route.	State adaptation and experimentation.	
CONSTITUTIONAL BASIS / ARTICLE - SECTION 63 each State shall establish a Lokayukta by State law. - VARIATION AXES single/member body - selection panel	POWER / PROCEDURE - suo-motu power minister coverage - investigation support - recommendation/enforcement route.	CHECK / LIMIT - DO NOT UNIVERSALISE one State's Governor panel, age, term, Upalokayukta or report consequence. - FEDERAL GAIN - State adaptation and experimentation.	FEDERAL / RIGHTS IMPACT - FEDERAL RISK uneven minimum protection, vacancies and dependence on State agencies. - REFORM model baseline + State autonomy + transparent appointments + public follow-up.
MECHANISM / VERDICT — DO NOT UNIVERSALISE one State's Governor panel, age, term, Upalokayukta or report consequence.			
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: REFORM model baseline + State autonomy + transparent appointments + public follow-up.			

10

STAGE 10 CASES AND CURRENT LEGAL CONTROLS			
CASES AND CURRENT LEGAL CONTROLS	COMMON CAUSE V. UNION OF INDIA (2017)	ACT WORKABLE DESPITE COMMITTEE VACANCY.	LOK PRAHARI V. UNION OF INDIA (2018)
2025 HIGH COURT-JUDGE ISSUE			
Common Cause v. Union of India (2017) → Act workable despite committee vacancy.	Lok Prahari v. Union of India (2018) → electoral disclosure, not section 44 restoration.	Sita Soren (2024) → bribery outside privilege immunity.	2025 HIGH COURT-JUDGE ISSUE
CONSTITUTIONAL BASIS / ARTICLE - Common Cause v. Union of India (2017) → Act workable despite committee vacancy. - Lok Prahari v. Union of India (2018) → electoral disclosure, not section 44 restoration.	POWER / PROCEDURE - Sita Soren (2024) → bribery outside privilege immunity. 2025 HIGH COURT-JUDGE ISSUE	CHECK / LIMIT - Supreme Court stayed the Lokpal order; no final merits holding. - CURRENT CLAIMS use dated primary sources; do not freeze transient statistics.	FEDERAL / RIGHTS IMPACT - Common Cause v. Union of India (2017) → Act workable despite committee vacancy. - Lok Prahari v. Union of India (2018) → electoral disclosure, not section 44 restoration.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CURRENT CLAIMS use dated primary sources; do not freeze transient statistics.			

11

STAGE 11 UPSC TRAPS AND ANSWER SYNTHESIS			
UPSC TRAPS AND ANSWER SYNTHESIS	PRELIMS FIREWALL STATUTORY, NOT CONSTITUTIONAL	MAXIMUM EIGHT MEMBERS	PM INCLUDED WITH FILTERS SPEECH/VOTE EXCLUSION
LOKAYUKTA DESIGN VARIES.	2025 PRELIMS ROUTE JURISDICTION + COMPOSITION		
PRELIMS FIREWALL statutory, not constitutional	maximum eight Members	PM included with filters speech/vote exclusion	no general suo-motu power
CONSTITUTIONAL BASIS / ARTICLE - PRELIMS FIREWALL statutory, not constitutional - maximum eight Members - PM included with filters speech/vote exclusion	POWER / PROCEDURE - no general suo-motu power - seven-year limitation referred-case CBI superintendence only - Lokayukta design varies.	CHECK / LIMIT 2025 PRELIMS ROUTE jurisdiction + composition → test percentage denominator, PM safeguards and privilege. - MAINS SPINE ombudsman evolution → legal identity → composition/independence - jurisdiction → complaint-to-court process → agency interfaces	FEDERAL / RIGHTS IMPACT - powers and safeguards → State variation → capacity reform. - Lokpal has real process powers, but credibility depends on appointments, agency - autonomy, reasoned transparency and court-controlled legality rather than institutional mythology.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PRELIMS FIREWALL statutory, not constitutional maximum eight Members PM included with filters speech/vote exclusion no general suo-motu power seven-year limitation referred-case CBI superintendence only Lokayukta design varies.			

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE			
OPTIONAL ADVANCED ENRICHMENT	DRAWBACKS (UPSC FAVOURITE)	UPSC TRAPS	CA HOOKS (OFFICIAL/COURT-VERIFIED)
OPTIONAL DOCTRINE / CASE - Composition - Selection - Jurisdiction - Drawbacks (UPSC favourite)	ADVANCED LIMIT - UPSC Traps - CA hooks (official/court-verified) - Mains angles - Ombudsman first created in Sweden (1809) ; India's version recommended by the First ARC (1966–70) →	COMPARATIVE NUANCE - ARC kept the judiciary outside Lokpal's purview (like New Zealand; unlike Sweden). - Ten bills introduced (1968 → Dec 2011) before the law finally passed → Lokpal and Lokayuktas Act, 2013 - Power of superintendence & direction over any agency incl. the CBI for referred cases. - Timelines: preliminary enquiry 3 (+3) months; investigation 6 (+6); trial 1 (+1) yr via special courts .	OMBUDSMAN FIRST CREATED IN SWEDEN (1809) ; INDIA'S VERSION
OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.			